

IN THE CIRCUIT COURT IN AND FOR ESCAMBIA COUNTY, FLORIDA

DEEPGULF, INC. and
TOKE OIL AND GAS, S.A.

Plaintiffs,

vs.

MARC M. MOSZKOWSKI

Defendant.

Case No.: 2018 CA 000543

Division: "E"

**DEFENDANT’S AMENDED NOTICE OF FILING EXHIBIT “A”
(AMENDING AUGUST 6, 2025 NOTICE OF FILING)**

Defendant, pro se, gives notice of filing the attached **Exhibit “A,” titled “Chronology of Knowledge & PPM Adoption (2010–2012) — Admissions, Legal Significance, and Limitations,”** which **AMENDS** the Notice of Filing Exhibit “A” filed on August 6, 2025, previously styled “Notice of Filing Exhibit ‘A’: Self-Impeachment by Affidavit (Rus Howard).” This amended filing supplements and clarifies the prior Exhibit “A” to present a precise chronology and condensed analysis consistent with the Court’s directive regarding pin-point citations; all arguments previously advanced are preserved.

The amendment (i) incorporates a precise chronology (**Oct 27, 2010; Jan**

25, 2011; May 25, 2012; Jul 19, 2012; Dec 13, 2012; Apr 3, 2018); (ii) condenses “Legal Significance and Implausibility” while preserving adoptive-knowledge, diligence, authenticity, and limitations points; and (iii) aligns headings with the evidentiary format the Court requested.

This Exhibit is offered to assist the Court in evaluating any proposed findings related to “**Directors’ Salaries**,” the Howard affidavit, and the ownership/acquisition chronology, and is submitted in support of Defendant’s forthcoming response to Plaintiffs’ revised proposed Final Judgment.

For avoidance of doubt, this amended notice is filed before Plaintiffs’ revised proposed final judgment and is served contemporaneously on Plaintiffs; it reiterates objections already in the record and provides a consolidated chronology to assist the Court.

Respectfully submitted on this 20th day of August, 2025.

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CERTIFICATE OF SERVICE

I hereby certify that, on this 20th day of August, 2025, a copy of this Notice has been furnished to Braden K. Ball, Jr., attorney for the plaintiffs, through the Florida Courts E-Filing Portal.

M. Marzowski

Exhibit "A"— Case No. 2018 CA 000543
Chronology of Knowledge & PPM Adoption (2010–2012) —
Admissions, Legal Significance, and Limitations

The following sworn statements by Plaintiff's principal, Rus Howard, directly contradict Plaintiffs' claims and impeach the affiant's credibility. Each is drawn from affidavits or corporate materials filed under oath in this case.

1. Admission of Continuous Directorship

Affidavit excerpt (R. Howard):

"Since the formation of DeepGulf, Inc. to the present date, Marc M. Moszkowski has been a director of DeepGulf, Inc."

Legal Significance:

- Sworn admission that Defendant was a director at all relevant times, including when the lawsuit was initiated.
- As a sitting director, Defendant was entitled to notice, participation, and a vote on any decision to sue; proceeding without that participation renders any purported board authorization defective.

- The lawsuit was initiated without the knowledge or participation of a director and significant shareholder, a core defect in corporate authorization to litigate.

2. Admission of 2014 Email Detailing \$345,000 Payments

Affidavit excerpt (R. Howard):

“In discovery, DeepGulf, Inc. was provided an email apparently from Marc M. Moszkowski to me dated March 6, 2014. I do not specifically recall seeing that email. I do not read, write or speak French and the attachments have no significance to me.”

Legal Significance:

- Notice and timing: R. Howard’s affidavit concedes the **2014**-dated email exists; the record (assistant acknowledgments/email metadata) shows corporate possession in **2014**. Personal non-recall and later “provided in discovery” language do not toll limitations; notice attaches when the corporation receives the document.
- The claim that an inability to read French obscured the significance is implausible where the attachments included U.S.-dollar bank

statements as well as a detailed spreadsheet with English references; Plaintiffs' own assistant understood and acknowledged it at the time.

- The suggestion it was only “provided in discovery” in **2018** is contradicted by the record showing prior possession.
- Portraying a failure to read or safeguard critical e-mails as a defense is not legally cognizable; it reflects inadequate recordkeeping, not a basis to avoid notice.
- Poor data management does not reset the statute of limitations; it is willful ignorance, not tolling.
- The attachments clearly detailed **\$345,000** in payments central to Plaintiffs' claims, making the assertion of “no significance” untenable and supporting an inference of bad faith.
- Actual or, at minimum, constructive knowledge in **2014** starts the limitations clock; the **April 2018** filing was untimely.

3. Admission of 2011 and 2012 Financial Statements and \$1,304,764.22 in “Directors Salaries” (Chronology and Legal Significance)

Affidavit excerpt (R. Howard):

“On January 25, 2011 and May 25, 2012, I did receive emails from Marc M.

Moszkowski with financial statements attached. I had no reason to believe that the 'Directors Salaries' were paid to the members of the Board of Directors of Toke Oil and Gas, S.A. or to Marc M. Moszkowski. These salaries could have been paid to employees... carrying the title of 'Director.'"

Undisputed chronology & adoptive knowledge:

- i. **27 Oct 2010** — DeepGulf acquires 1/3 of Toke from Director Vicente Ximenes for \$1 (**three months** before the first e-mail).
- ii. **25 Jan 2011** — At Howard's request, Defendant emails financial statements showing "**Directors' Salaries.**"
- iii. **25 May 2012** — Defendant emails a second set of statements (**six and a half months** before the final acquisition).
- iv. **19 Jul 2012** — While preparing to acquire the balance 2/3 of Toke for **\$100,100**, Howard incorporates Toke's full accounts into DeepGulf's PPM (covering **2010**, when DeepGulf owned 0%, and **2011**, when DeepGulf owned 33.33%).
- v. **13 Dec 2012** — DeepGulf acquires Moszkowski's 1/3 for **\$100** and Ximenes' remaining 1/3 for **\$100,000 (five years, three months, three weeks** before Plaintiffs filed suit).

- vi. **3 Apr 2018** — DeepGulf and Toke file suit, **7 years, 5 months, 1 week** after receiving and acknowledging the **25 Jan 2011** information.

Legal Significance and Implausibility:

- **Adoptive knowledge / issuer responsibility.** Howard received the **2011** and **2012** statements (showing **\$1,304,764.22** in “**Directors’ Salaries**”) and incorporated them into DeepGulf’s PPM **on 19 Jul 2012**; an issuer that adopts financials is chargeable with their contents and cannot credibly claim ignorance.
- **Diligence vs. willful blindness.** After acquiring 1/3 of Toke **in 2010**, receiving the two statement sets, and closing on the remaining 2/3 **on 13 Dec 2012** (paying **\$100,000** for the final third), the assertion of “no reason to believe” the line referred to board directors is incompatible with ordinary corporate diligence. Treating a **seven-figure** item as insignificant is not credible oversight.
- **Purchase-price anomaly.** A fiduciary who controlled the bank accounts does not ordinarily pay **\$100,000** for the final one-third of an empty shell while professing ignorance of a “**Directors’ Salaries**” line item totaling **\$1,304,764.22**; that stance is incompatible with ordinary corporate diligence.

- **Litigation timing and narrative shift.** Paying **\$100,000** on **December 13, 2012** for the final one-third of Toke—which Defendant contemporaneously characterized as an “empty shell”—while giving no apparent attention to a **\$1,304,764.22 “Directors’ Salaries”** line item already in hand and adopted into DeepGulf’s **July 19, 2012** PPM reflects a lack of contemporaneous diligence, not later claims of surprise. More than seven years after first receipt (**January 25, 2011**)—and after Defendant left the United States because the company-sponsor failed to renew his visa—Plaintiffs reframed the same records to assign fault to an absent executive.
- **No proof of “employee directors.”** The speculation that “employees” carried the title “Director” is unsupported by names, contracts, payroll, or any documentary evidence; it cannot sustain a finding.
- **Fiduciary oversight failure.** As director/officer, R. Howard had a duty to inquire into seven-figure disbursements labeled “Directors’ Salaries,” particularly where Defendant served on the board. The record reflects either deliberate bad faith or gross dereliction of that duty.
- **Limitations / notice.** The **2011–2012** receipt and the **2012** PPM adoption establish actual—or at minimum, inquiry—notice years

before suit (filed **5 years, 3 months, 3 weeks** after the final acquisition and **7 years, 5 months, 1 week** after the first), reinforcing statute-of-limitations defenses.

- **Requested disposition.** Disregard any finding that the **\$1,304,764.22** was not paid to actual directors absent identified payees and records; otherwise draw an adverse inference and reject the affidavit's speculation.

Summary (for the Court's convenience)

These record admissions and adopted corporate materials (including Howard's sworn affidavit, the **2011–2012** statements incorporated into DeepGulf's PPM, the **December 13, 2012 \$100,000** purchase price for the final one-third, and the **2010–2012** acquisition chronology) independently establish: **(1)** lack of valid board authorization to sue; **(2)** statute-of-limitations expiry long before filing, based on actual or inquiry notice in **2011–2012**; and **(3)** explanations that are inconsistent with the financial records and unsupported by names, contracts, or payroll for any supposed "employee directors." The purchase-price anomaly further undermines Plaintiffs' assertions that they lacked knowledge or reason to inquire. These contradictions have been in the record through multiple pleadings and have

never been rebutted. Defendant respectfully requests that the Court expressly address these issues in any final judgment and identify the evidence on which it relies in accepting or rejecting them; to the extent they are not addressed, Defendant preserves his objection that the absence of express rulings prevents meaningful appellate review.

Respectfully submitted on this 20th day of August, 2025.

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